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March 4, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 758

By: Thompson and Paxton of the
Senate

and

Moore of the House

An Act relating to schools; amending 70 O.S. 2021, Section 1-109, which relates to length of the school year; prohibiting a school district or charter school from counting certain days or portions of days when school is closed and virtual instruction is provided toward certain classroom instruction time requirement; defining term; providing circumstances under which school may be closed and virtual instruction may count toward certain classroom instruction time requirement; providing certain exceptions; requiring publication and submission of certain annual report; providing for contents of report; updating statutory language; and updating statutory reference.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1-109, is amended to read as follows:

Section 1-109. A. For all public schools in ~~Oklahoma~~ this
state, school shall actually be in session and classroom instruction
offered:

1. For not less than one hundred eighty (180) days; ~~or~~

1 2. For not less than one thousand eighty (1,080) hours each
2 school year, if a district board of education adopts a school-hours
3 policy and notifies the State Board of Education prior to October 15
4 of the applicable school year; ~~or~~

5 3. Beginning with the 2021-2022 school year, for not less than
6 one thousand eighty (1,080) hours with a minimum of one hundred
7 sixty-five (165) days of instruction each school year, if a district
8 board of education adopts a school-hours policy and notifies the
9 State Board of Education prior to October 15 of the applicable
10 school year; or

11 4. Beginning with the 2021-2022 school year, for not less than
12 one thousand eighty (1,080) hours each school year, if a district
13 board of education adopts a school-hours policy, notifies the State
14 Board of Education prior to October 15 of the applicable school
15 year, and meets the requirements established by the State Board of
16 Education pursuant to subsection H of this section.

17 B. A school district may not count more than thirty (30) hours
18 each school year that are used for attendance of professional
19 meetings toward the one hundred eighty (180) days or one thousand
20 eighty (1,080) hours of classroom instruction time required in
21 subsection A of this section.

22 C. Teachers off contract with an employing district shall not
23 be required by the employing school district to attend professional
24 meetings unless the teacher is paid additional compensation for the

1 additional time. Teachers may be paid additional compensation for
2 attending professional meetings in excess of their contract term.
3 Subject to district board of education policy or collective
4 bargaining agreement, additional paid professional days may be
5 granted for individual teachers to attend or participate in
6 professional meetings, staff development training, or National Board
7 certification portfolio development as provided for in Section 6-
8 204.2 of this title.

9 D. A school district may authorize parent-teacher conferences
10 to be held during a regular school day. If authorized by the school
11 district, parent-teacher conferences shall be counted as classroom
12 instruction time for no more than six (6) hours per semester, for a
13 total of twelve (12) hours per school year.

14 E. A school district may maintain school for less than a full
15 school year only when conditions beyond the control of school
16 authorities make the maintenance of the term impossible and the
17 State Board of Education has been apprised and has expressed
18 concurrence in writing.

19 F. The State Board of Education shall establish criteria for an
20 extended-day schedule for schools subject to paragraph 1 of
21 subsection A of this section. The criteria shall:

22 1. Prescribe a lengthened school day within limits determined
23 not to be detrimental to quality instruction;

24

1 2. Ensure that the schedule is equivalent in annual hours of
2 instruction to the one-hundred-eighty-day school year specified in
3 paragraph 1 of subsection A of this section; and

4 3. Be consistent with the provisions of this section and
5 Sections 1-111 and 1-112 of this title⁷ but may result in fewer
6 annual days of instruction.

7 G. Notwithstanding the provisions of subsection F of this
8 section, a school district board of education subject to paragraph 1
9 of subsection A of this section may adopt and implement an extended-
10 day schedule subject to the following requirements:

11 1. The annual number of hours of instruction shall equal or
12 exceed one thousand eighty (1,080) hours, which is the equivalent of
13 one hundred eighty (180) days of instruction as specified in
14 subsection A of this section for six (6) hours each day as specified
15 in Section 1-111 of this title;

16 2. The annual number of days of instruction shall equal or
17 exceed one hundred eighty (180) days as specified in subsection A of
18 this section;

19 3. The schedule adopted shall be consistent with the provisions
20 of Sections 1-111 and 1-112 of this title, except that for not more
21 than one (1) day per week, a school day shall consist of not less
22 than five (5) hours devoted to academic instruction in a regular
23 classroom setting;

1 4. The district shall hold a public hearing prior to the
2 adoption of an extended-day schedule authorized pursuant to this
3 subsection; and

4 5. The district shall document the impact on student
5 achievement as determined by the academic performance data score and
6 any other relevant factors that are a result of implementation of an
7 extended-day schedule authorized pursuant to this subsection and
8 provide an annual report to the State Board of Education of the
9 results. If improvement in student achievement cannot be documented
10 in the report, the district board of education shall revoke
11 authorization as provided by this subsection. If the district does
12 not revoke authorization after student achievement is not documented
13 in the report, the State Board of Education may deny accreditation
14 of any school in violation of this subsection.

15 H. Beginning with the 2021-2022 school year, a school district
16 board of education may adopt a school-hours policy as provided for
17 by paragraph 4 of subsection A of this section only if it meets or
18 exceeds the minimum guidelines for student performance and school
19 district cost savings established by the State Board of Education.
20 The State Board of Education shall promulgate rules, subject to
21 approval by the Legislature, establishing the minimum guidelines for
22 student performance and school district cost savings.

23 I. If subject to paragraph 2 of subsection A of this section, a
24 district board of education or designee may elect to close a school

1 during the school day for inclement weather purposes. In such an
2 event, the number of hours incurred in classroom instruction time
3 prior to school closure shall be counted toward the one thousand
4 eighty (1,080) hours per year requirement.

5 J. 1. Except as provided for in paragraph 2 of this
6 subsection, a school district or charter school shall not count days
7 or portions of days when school is closed and virtual instruction is
8 provided toward the one hundred eighty (180) days or one thousand
9 eighty (1,080) hours of classroom instruction time required by
10 subsection A of this section. For the purposes of this subsection,
11 "virtual instruction" means the use of the Internet or other digital
12 information transmission systems as a form of instruction.

13 2. Days or portions of days when school is closed and virtual
14 instruction is provided may count toward the one hundred eighty
15 (180) days or one thousand eighty (1,080) hours of classroom
16 instruction time required by subsection A of this section only if:

- 17 a. a state of emergency or proclamation has been issued
18 by the Governor for a specific reason relating to
19 school district or charter school operations,
20 b. the Superintendent of Public Instruction approves the
21 use of virtual instruction based on the ability of the
22 school district or charter school to provide virtual
23 instruction, and
24

1 c. the school district board of education or charter
2 school governing board approves the use of virtual
3 instruction.

4 3. The provisions of this subsection shall not apply to
5 statewide virtual charter schools or full-time virtual education
6 programs operated by a school district.

7 K. By June 30, 2026, and by June 30 each subsequent year, the
8 State Department of Education shall publish on its website and
9 electronically submit to the Governor, the President Pro Tempore of
10 the Senate, and the Speaker of the House of Representatives a report
11 with information regarding the use of virtual instruction as
12 authorized by subsection J of this section. The report shall
13 include, at a minimum:

14 1. The school districts and charter schools that closed school
15 and provided virtual instruction as authorized by paragraph 2 of
16 subsection J of this section and the length of time virtual
17 instruction was provided; and

18 2. The reason for which school was closed and virtual
19 instruction was provided.

20 L. Nothing in this section shall be construed as affecting the
21 right of an employing school district to require teachers as defined
22 in Section 6-101.3 of this title to work in excess of the one
23 thousand eighty (1,080) hours required for student instruction. In
24 addition, nothing in this section shall be construed to affect the

1 Fair Labor Standards Act of 1938 status of any school district
2 employee.

3 ~~K.~~ M. The provisions of this section shall not prohibit the
4 Oklahoma School for the Blind or the Oklahoma School for the Deaf
5 from adopting an alternative school-hours policy if the Oklahoma
6 School for the Blind or the Oklahoma School for the Deaf notifies
7 and receives approval from the State Board of Education prior to
8 October 15 of the applicable school year.

9 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
10 March 4, 2025 - DO PASS AS AMENDED BY CS
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